

DRAFT CABLE TO BERN

AMERICAN LEGATION,

BERN.

Your 5149, August 22.

Treasury advises that:

(1) It has no objection to the extension of the refugee evacuation plan outlined in Department's 1889 to include evacuation into Switzerland.

(2) Question raised in paragraph three of telegram under reference has been answered in Department's _____.

(3) The term "Jewish refugees" in paragraph (a) of Department's 1889 is not limited to Jews in France who are of French nationality. Jewish refugees in France regardless of nationality are intended to be included. Since the program is a private rather than a governmental concern, the selection of refugees for evacuation is essentially a matter for the representatives of the World Jewish Congress.

(4) Expenditures for food and clothing necessary to prepare refugees for journey to free territory may be considered expenses in connection with evacuation for purposes of the proposals in Department's 1889.

The question of compliance with Swiss immigration laws is a matter for the persons directly concerned since the financing of the evacuation is a private rather than a United States Governmental project.

FF:WJH:MW